

provided to FTSI to prepare its bid did not specify that FTSI was to install extensive conduit. FTSI also points out that its bid does not reference conduit.

To support its version of the events, Everon heavily relies on a sentence found in Paragraph 8 of FTSI's counter-affidavit. However, the sentence appears to contain a typographical error. It reads:

Conduit installation was included in FTSI's accepted bid or its contract with Everon.

It is clear to the Court, based on the grammatical structure of the sentence, that it was supposed to read "Conduit installation was not included in FTSI's accepted bid or its contract with Everon." Thus, the Court does not find this purported evidence of an admission persuasive.

Everon's argument that Newport already rejected FTSI's requests for change orders regarding conduit installation does not change the outcome. As explained in *Ted Jacob Engineering Group, Inc. v. The Ratcliff Architects*, cited by FTSI, a contractor faced with a substantial change in its originally contracted scope of work, who is unable to successfully negotiate a price for that additional work, may elect to continue to work and reserve its right to subsequently obtain a judicial determination as to the value of the changes. (*Ted Jacob Engineering Group, Inc. v. The Ratcliff Architects* (2010) 187 Cal.App.4th 945, 966.) The *Ted Jacob* court elaborated:

So long as the other contracting party continues to demand performance of the increased scope of work, and in the absence of any conflicting provision of the contract, the contractor may continue to work after unsuccessful negotiations and

subsequently recover the value of that work. To hold otherwise would compel a contractor to walk off the job in the face of what it believes to be major changes in the scope of work required of it, with significant consequences if its judgment is later proven wrong, or alternatively forfeit any right to seek compensation for that work, regardless of the extent of the additional burdens imposed.

(*Ibid.*)

Accordingly, the motion is **DENIED**.

Clerk to give notice.

11. 30-2026-01561514
**Karim vs. American
Tax Defense**

**1. Case Management Conference
2. Motion to Be Relieved as Counsel of Record**

The unopposed motion of attorney Arash S. Khosrowshahi, an attorney with Laurel Employment Law, APC, counsel of record for Plaintiff Sikandar Karim in this action, is **GRANTED**.

Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.

The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client.

* NOTE: The next hearings on this matter are Defendant's Demurrer to Complaint and Motion to Strike, and they are set for November 12, 2026 at 1:30 p.m. in Department C34.

Moving attorney to give notice.